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EXAMINER	
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Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

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Office Action Summary	Application No. 18/123,203	Applicant(s) Fang et al.	
	Examiner HAMZA N ALGIBHAH	Art Unit 2441	AIA (FITF) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 03/17/2023.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL.** 2b) ☑ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-30 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1 and 4-30 is/are rejected.

8) ☑ Claim(s) 2-3 is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☐ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 03/17/2023 is/are: a)☑ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☑ Notice of References Cited (PTO-892)

2) ☑ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

Detailed Action

1. ***Claims 1-30*** are pending.

2. ***Claims 1, 4-30 are rejected.***

3. ***Claims 2-3 are objected.***

Double Patenting

A rejection based on double patenting of the "same invention" type finds its support in the language of 35 U.S.C. 101 which states that "whoever invents or discovers any new and useful process... may obtain a patent therefor..." (Emphasis added). Thus, the term "same invention," in this context, means an invention drawn to identical subject matter. See *Miller v. Eagle Mfg. Co.*, 151 U.S. 186 (1894); *In re Vogel*, 422 F.2d 438, 164 USPQ 619 (CCPA 1970); *In re Ockert*, 245 F.2d 467, 114 USPQ 330 (CCPA 1957).

A statutory type (35 U.S.C. 101) double patenting rejection can be overcome by canceling or amending the claims that are directed to the same invention so they are no longer coextensive in scope. The filing of a terminal disclaimer cannot overcome a double patenting rejection based upon 35 U.S.C. 101.

Claims 1, 4-13 and 19 is/are rejected under 35 U.S.C. 101 as claiming the same invention as that of claims 1-11 of prior U.S. Patent No. 11,721,137 . This is a statutory double patenting rejection.

Instant claims	Patent claims
1. An apparatus comprising: a policy acquisition circuit structured to interpret a vehicle policy data value comprising at least one requested vehicle property; a parameter acquisition circuit structured to	1. An apparatus comprising: a policy acquisition circuit structured to interpret a vehicle policy data value comprising at least one requested vehicle property; a parameter acquisition circuit structured to

interpret a plurality of vehicle parameter values, responsive to the at least one requested vehicle property, from a plurality of providing end points, each of the plurality of providing end points on at least one network zone of a vehicle; and a parameter storage circuit structured to: selectively store at least a portion of the plurality of vehicle parameter values, wherein at least a first portion of the stored at least a portion of the plurality of vehicle parameter values is stored on a storage end point distinct from an associated one of the providing end points for the at least a first portion of the stored vehicle parameter values; determine a reserved memory amount associated with at least a portion of the plurality of vehicle parameter values by determining an amount of data to be collected to support the at least a portion of the plurality of vehicle parameter values; and perform the selectively storing the at least a portion of the plurality of vehicle parameter values in response to the reserved memory amount.	interpret a plurality of vehicle parameter values, responsive to the at least one requested vehicle property, from a plurality of providing end points, each of the plurality of providing end points on at least one network zone of a vehicle; and a parameter storage circuit structured to: selectively store at least a portion of the plurality of vehicle parameter values, wherein at least a first portion of the stored at least a portion of the plurality of vehicle parameter values are stored on a storage end point distinct from an associated one of the providing end points for the at least a first portion of the stored vehicle parameter values; determine a reserved memory amount associated with at least a portion of the plurality of vehicle parameter values by determining an amount of data to be collected to support the at least a portion of the plurality of vehicle parameter values; and perform the selectively storing the at least a portion of the plurality of vehicle parameter values in response to the reserved memory amount.

4. The apparatus of claim 1, wherein the parameter storage circuit is further structured to determine the reserved memory amount by determining an amount of data to be collected to support a trigger evaluation associated with the at least a portion of the plurality of vehicle parameter values.	2. The apparatus of claim 1, wherein the parameter storage circuit is further structured to determine the reserved memory amount by determining an amount of data to be collected to support a trigger evaluation associated with the at least a portion of the plurality of vehicle parameter values.
5. The apparatus of claim 1, wherein the parameter storage circuit is further structured to determine the reserved memory amount by determining a transmission latency value associated with the at least a portion of the plurality of vehicle parameter values.	3. The apparatus of claim 1, wherein the parameter storage circuit is further structured to determine the reserved memory amount by determining a transmission latency value associated with the at least a portion of the plurality of vehicle parameter values.
6. The apparatus of claim 1, further comprising a storage management circuit structured to determine a parameter transmission schedule for stored vehicle parameter values, and wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter values in response to the parameter transmission schedule.	4. The apparatus of claim 1, further comprising a storage management circuit structured to determine a parameter transmission schedule for stored vehicle parameter values, and wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter values in response to the parameter transmission schedule.
7. The apparatus of claim 1, further comprising a storage management circuit	5. The apparatus of claim 1, further comprising a storage management circuit

structured to determine a parameter expiration schedule for stored vehicle parameter values, and wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter values in response to the parameter expiration schedule.	structured to determine a parameter expiration schedule for stored vehicle parameter values, and wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter values in response to the parameter expiration schedule.
8. The apparatus of claim 7, wherein the parameter storage circuit is further structured to perform at least one operation responsive to the parameter expiration schedule selected from the operations consisting of. deleting at least a portion of the stored vehicle parameter values; summarizing at least a portion of the stored vehicle parameter values; compressing at least a portion of the stored vehicle parameter values; or adjusting a reserved memory amount associated with at least a portion of the stored vehicle parameter values.	6. The apparatus of claim 5, wherein the parameter storage circuit is further structured to perform at least one operation responsive to the parameter expiration schedule selected from the operations consisting of: deleting at least a portion of the stored vehicle parameter values; summarizing at least a portion of the stored vehicle parameter values; compressing at least a portion of the stored vehicle parameter values; or adjusting a reserved memory amount associated with at least a portion of the stored vehicle parameter values.
9. The apparatus of claim 1, wherein the parameter storage circuit is further structured to determine the reserved memory amount in response to a priority value associated with the	7. The apparatus of claim 1, wherein the parameter storage circuit is further structured to determine the reserved memory amount in response to a priority value associated with the at least a portion of the vehicle parameter values.

at least a portion of the plurality of vehicle parameter values.	
10. The apparatus of claim 9, wherein the priority value comprises an on-vehicle data storage priority.	8. The apparatus of claim 7, wherein the priority value comprises an on-vehicle data storage priority.
11. The apparatus of claim 10, wherein the priority value comprises a transmission priority.	9. The apparatus of claim 8, wherein the priority value comprises a transmission priority.
12. The apparatus of claim 10, wherein the priority value comprises a priority associated with an entity requesting the at least a portion of the plurality of vehicle parameter values.	10. The apparatus of claim 8, wherein the priority value comprises a priority associated with an entity requesting the at least a portion of the vehicle parameter values.
13. The apparatus of claim 10, wherein the priority value comprises a priority associated with a flow requesting the at least a portion of the plurality of vehicle parameter values.	11. The apparatus of claim 8, wherein the priority value comprises a priority associated with a flow requesting the at least a portion of the vehicle parameter values.
19. The apparatus of claim 14, wherein the parameter storage circuit is further structured to determine a reserved memory amount associated with at least a portion of the plurality of vehicle parameter values, and to perform the selectively storing the at least a portion of the plurality of vehicle parameter values in response to the reserved memory amount.	Claim 1

The nonstatutory double patenting rejection is based on a judicially created doctrine grounded in public policy (a policy reflected in the statute) so as to prevent the unjustified or improper timewise extension of the "right to exclude" granted by a patent and to prevent possible harassment by multiple assignees. A nonstatutory double patenting rejection is appropriate where the conflicting claims are not identical, but at least one examined application claim is not patentably distinct from the reference claim(s) because the examined application claim is either anticipated by, or would have been obvious over, the reference claim(s). See, e.g., *In re Berg*, 140 F.3d 1428, 46 USPQ2d 1226 (Fed. Cir. 1998); *In re Goodman*, 11 F.3d 1046, 29 USPQ2d 2010 (Fed. Cir. 1993); *In re Longi*, 759 F.2d 887, 225 USPQ 645 (Fed. Cir. 1985); *In re Van Ornum*, 686 F.2d 937, 214 USPQ 761 (CCPA 1982); *In re Vogel*, 422 F.2d 438, 164 USPQ 619 (CCPA 1970); *In re Thorington*, 418 F.2d 528, 163 USPQ 644 (CCPA 1969).

A timely filed terminal disclaimer in compliance with 37 CFR 1.321(c) or 1.321(d) may be used to overcome an actual or provisional rejection based on nonstatutory double patenting provided the reference application or patent either is shown to be commonly owned with the examined application, or claims an invention made as a result of activities undertaken within the scope of a joint research agreement. See MPEP § 717.02 for applications subject to examination under the first inventor to file provisions of the AIA as explained in MPEP § 2159. See MPEP § 2146 *et seq.* for applications not subject to examination under the first inventor to file provisions of the AIA. A terminal disclaimer must be signed in compliance with 37 CFR 1.321(b).

The filing of a terminal disclaimer by itself is not a complete reply to a nonstatutory double patenting (NSDP) rejection. A complete reply requires that the terminal disclaimer be accompanied by a reply requesting reconsideration of the prior Office action. Even where the NSDP rejection is provisional the reply must be complete. See MPEP § 804, subsection I.B.1. For a reply to a non-final Office action, see 37 CFR 1.111(a). For a reply to final Office action, see 37 CFR 1.113(c). A request for reconsideration

while not provided for in 37 CFR 1.113(c) may be filed after final for consideration. See MPEP §§ 706.07(e) and 714.13.

The USPTO Internet website contains terminal disclaimer forms which may be used. Please visit www.uspto.gov/patent/patents-forms. The actual filing date of the application in which the form is filed determines what form (e.g., PTO/SB/25, PTO/SB/26, PTO/AIA/25, or PTO/AIA/26) should be used. A web-based eTerminal Disclaimer may be filled out completely online using web-screens. An eTerminal Disclaimer that meets all requirements is auto-processed and approved immediately upon submission. For more information about eTerminal Disclaimers, refer to www.uspto.gov/patents/apply/applying-online/eterminal-disclaimer.

Claims 1, 4-13 and 19 are rejected on the ground of nonstatutory double patenting as being unpatentable over claims 12-20 of U.S. Patent No. 11,721,137. Although the claims at issue are not identical, they are not patentably distinct from each other because the instant claims are the apparatus claims corresponding to the system claims of the patent.

Instant claims	Patent claims
1. An apparatus comprising: a policy acquisition circuit structured to interpret a vehicle policy data value comprising at least one requested vehicle property; a parameter acquisition circuit structured to interpret a plurality of vehicle parameter values, responsive to the at least one requested vehicle property, from a plurality of providing end points, each of the plurality of providing end points on at least one network zone of a vehicle; and	12. A **vehicle system** comprising: a policy acquisition circuit structured to interpret a vehicle policy data value comprising at least one requested vehicle property; a parameter acquisition circuit structured to interpret a plurality of vehicle parameter values, responsive to the at least one requested vehicle property, from a plurality of providing end points, each of the plurality of providing end points on at least one network zone of a vehicle; and

a parameter storage circuit structured to: selectively store at least a portion of the plurality of vehicle parameter values, wherein at least a first portion of the stored at least a portion of the plurality of vehicle parameter values is stored on a storage end point distinct from an associated one of the providing end points for the at least a first portion of the stored vehicle parameter values; determine a reserved memory amount associated with at least a portion of the plurality of vehicle parameter values by determining an amount of data to be collected to support the at least a portion of the plurality of vehicle parameter values; and perform the selectively storing the at least a portion of the plurality of vehicle parameter values in response to the reserved memory amount.	a parameter storage circuit structured to: selectively store at least a portion of the plurality of vehicle parameter values, wherein at least a first portion of the stored at least a portion of the plurality of vehicle parameter values are stored on a storage end point distinct from an associated one of the providing end points for the at least a first portion of the stored vehicle parameter values; determine a reserved memory amount associated with at least a portion of the plurality of vehicle parameter values by determining an amount of data to be collected to support the at least a portion of the plurality of vehicle parameter values; and perform the selectively storing the at least a portion of the plurality of vehicle parameter values in response to the reserved memory amount.
4. The apparatus of claim 1, wherein the parameter storage circuit is further structured to determine the reserved memory amount by determining an amount of data to be collected to support a trigger evaluation associated with the	13. The **system** of claim 12, wherein the parameter storage circuit is further structured to determine the reserved memory amount by determining an amount of data to be collected to support a trigger evaluation associated with the

at least a portion of the plurality of vehicle parameter values.	at least a portion of the plurality of vehicle parameter values.
5. The apparatus of claim 1, wherein the parameter storage circuit is further structured to determine the reserved memory amount by determining a transmission latency value associated with the at least a portion of the plurality of vehicle parameter values.	14. The **system** of claim 12, wherein the parameter storage circuit is further structured to determine the reserved memory amount by determining a transmission latency value associated with the at least a portion of the plurality of vehicle parameter values.
6. The apparatus of claim 1, further comprising a storage management circuit structured to determine a parameter transmission schedule for stored vehicle parameter values, and wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter values in response to the parameter transmission schedule.	15. The **system** of claim 12, further comprising a storage management circuit structured to determine a parameter transmission schedule for stored vehicle parameter values, and wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter values in response to the parameter transmission schedule.
7. The apparatus of claim 1, further comprising a storage management circuit structured to determine a parameter expiration schedule for stored vehicle parameter values, and wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter	16. The **system** of claim 12, further comprising a storage management circuit structured to determine a parameter expiration schedule for stored vehicle parameter values, and wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter

values in response to the parameter expiration schedule.	values in response to the parameter expiration schedule.
8. The apparatus of claim 7, wherein the parameter storage circuit is further structured to perform at least one operation responsive to the parameter expiration schedule selected from the operations consisting of. deleting at least a portion of the stored vehicle parameter values; summarizing at least a portion of the stored vehicle parameter values; compressing at least a portion of the stored vehicle parameter values; or adjusting a reserved memory amount associated with at least a portion of the stored vehicle parameter values.	17. The **system** of claim 16, wherein the parameter storage circuit is further structured to perform at least one operation responsive to the parameter expiration schedule selected from the operations consisting of: deleting at least a portion of the stored vehicle parameter values; summarizing at least a portion of the stored vehicle parameter values; compressing at least a portion of the stored vehicle parameter values; or adjusting a reserved memory amount associated with at least a portion of the stored vehicle parameter values.
9. The apparatus of claim 1, wherein the parameter storage circuit is further structured to determine the reserved memory amount in response to a priority value associated with the at least a portion of the plurality of vehicle parameter values.	18. The **system** of claim 12, wherein the parameter storage circuit is further structured to determine the reserved memory amount in response to a priority value associated with the at least a portion of the vehicle parameter values.
10. The apparatus of claim 9, wherein the priority value comprises an on-vehicle data storage priority.	19. The **system** of claim 18, wherein the priority value comprises an on-vehicle data storage priority.

11. The apparatus of claim 10, wherein the priority value comprises a transmission priority.	20. The **system** of claim 19, wherein the priority value comprises a transmission priority.
19. The apparatus of claim 14, wherein the parameter storage circuit is further structured to determine a reserved memory amount associated with at least a portion of the plurality of vehicle parameter values, and to perform the selectively storing the at least a portion of the plurality of vehicle parameter values in response to the reserved memory amount.	Claim 12.

Claims 14-18 and 20-30 are rejected on the ground of nonstatutory double patenting as being unpatentable over claims 1-11 of U.S. Patent No. 11,721,137. Although the claims at issue are not identical, they are not patentably distinct from each other because the instant claims are broader in scope than the patent claims. It would have been obvious to a person of ordinary skill in the art at the time the invention was made to omit elements wherein the remaining elements perform as before. A person of ordinary skill could have arrived at the present claims by omitting the details of the patented claims. See In re Karlson (CCPA) 136 USPQ 184, decided January 16, 1963 ("Omission of element and its function in combination is obvious expedient if remaining elements perform same functions as before").

Instant claims	Patent claims

14. An apparatus comprising:	1. An apparatus comprising:
a policy acquisition circuit structured to interpret a vehicle policy data value comprising at least one requested vehicle property;	a policy acquisition circuit structured to interpret a vehicle policy data value comprising at least one requested vehicle property;
a parameter acquisition circuit structured to interpret a plurality of vehicle parameter values, responsive to the at least one requested vehicle property, from a plurality of providing end points, each of the plurality of providing end points on at least one network zone of a vehicle; and	a parameter acquisition circuit structured to interpret a plurality of vehicle parameter values, responsive to the at least one requested vehicle property, from a plurality of providing end points, each of the plurality of providing end points on at least one network zone of a vehicle; and
a parameter storage circuit structured to selectively store at least a portion of the plurality of vehicle parameter values, wherein at least a first portion of the stored at least a portion of the plurality of vehicle parameter values are stored on a storage end point distinct from an associated one of the plurality of providing end points for the at least a first portion of the stored vehicle parameter values.	a parameter storage circuit structured to: selectively store at least a portion of the plurality of vehicle parameter values, wherein at least a first portion of the stored at least a portion of the plurality of vehicle parameter values are stored on a storage end point distinct from an associated one of the providing end points for the at least a first portion of the stored vehicle parameter values; **determine a reserved memory amount associated with at least a portion of the plurality of vehicle parameter values by determining an amount of data to be collected to support the at least a portion of the plurality of vehicle**

	parameter values; and **perform the selectively storing the at least a portion of the plurality of vehicle parameter values in response to the reserved memory amount.**
15. The apparatus of claim 14, wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter values on a single storage end point.	Claim 1
16. The apparatus of claim 14, further comprising a storage management circuit structured to determine a parameter transmission schedule for stored vehicle parameter values, and wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter values in response to the parameter transmission schedule.	4. The apparatus of claim 1, further comprising a storage management circuit structured to determine a parameter transmission schedule for stored vehicle parameter values, and wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter values in response to the parameter transmission schedule.
17. The apparatus of claim 14, further comprising a storage management circuit structured to determine a parameter expiration schedule for stored vehicle parameter values, and wherein the parameter storage circuit is	5. The apparatus of claim 1, further comprising a storage management circuit structured to determine a parameter expiration schedule for stored vehicle parameter values, and wherein the parameter storage circuit is

further structured to selectively store the at least a portion of the plurality of vehicle parameter values in response to the parameter expiration schedule.	further structured to selectively store the at least a portion of the plurality of vehicle parameter values in response to the parameter expiration schedule.
18. The apparatus of claim 17, wherein the parameter storage circuit is further structured to perform at least one operation responsive to the parameter expiration schedule selected from the operations consisting of: deleting at least a portion of the stored vehicle parameter values; summarizing at least a portion of the stored vehicle parameter values; compressing at least a portion of the stored vehicle parameter values; or adjusting a reserved memory amount associated with at least a portion of the stored vehicle parameter values.	6. The apparatus of claim 5, wherein the parameter storage circuit is further structured to perform at least one operation responsive to the parameter expiration schedule selected from the operations consisting of: deleting at least a portion of the stored vehicle parameter values; summarizing at least a portion of the stored vehicle parameter values; compressing at least a portion of the stored vehicle parameter values; or adjusting a reserved memory amount associated with at least a portion of the stored vehicle parameter values.
19. The apparatus of claim 14, wherein the parameter storage circuit is further structured to determine a reserved memory amount associated with at least a portion of the plurality of vehicle parameter values, and to perform the selectively storing the at least a portion of the plurality of vehicle parameter values in response to the reserved memory amount.	7. Claim 1

20. The apparatus of claim 19, wherein the parameter storage circuit is further structured to determine the reserved memory amount by performing at least one operation selected from the operations consisting of: determining an amount of data to be collected to support the at least a portion of the plurality of vehicle parameter values; determining an amount of data to be collected to support a trigger evaluation associated with the at least a portion of the plurality of vehicle parameter values; or determining a transmission latency value associated with the at least a portion of the plurality of vehicle parameter values.	2. The apparatus of claim 1, wherein the parameter storage circuit is further structured to determine the reserved memory amount by determining an amount of data to be collected to support a trigger evaluation associated with the at least a portion of the plurality of vehicle parameter values.
21. The apparatus of claim 19, wherein the parameter storage circuit is further structured to determine the reserved memory amount in response to a priority value associated with the at least a portion of the plurality of vehicle parameter values.	7. The apparatus of claim 1, wherein the parameter storage circuit is further structured to determine the reserved memory amount in response to a priority value associated with the at least a portion of the vehicle parameter values.
22. The apparatus of claim 21, wherein the priority value comprises an on-vehicle data storage priority.	8. The apparatus of claim 7, wherein the priority value comprises an on-vehicle data storage priority.

23. The apparatus of claim 21, wherein the priority value comprises a transmission priority.	9. The apparatus of claim 8, wherein the priority value comprises a transmission priority.
24. The apparatus of claim 21, wherein the priority value comprises a priority associated with an end point providing the at least a portion of the plurality of vehicle parameter values.	10. The apparatus of claim 8, wherein the priority value comprises a priority associated with an entity requesting the at least a portion of the vehicle parameter values.
25. The apparatus of claim 21, wherein the priority value comprises a priority associated with an end point requesting the at least a portion of the plurality of vehicle parameter values.	11. The apparatus of claim 8, wherein the priority value comprises a priority associated with a flow requesting the at least a portion of the vehicle parameter values.
26. The apparatus of claim 21, wherein the priority value comprises a priority associated with an entity requesting the at least a portion of the plurality of vehicle parameter values.	Claim 11
27. The apparatus of claim 21, wherein the priority value comprises a priority associated with an application requesting the at least a portion of the plurality of vehicle parameter values.	Claim 11
28. The apparatus of claim 21, wherein the priority value comprises a priority associated with an application associated with an end point requesting the at least a portion of the plurality of vehicle parameter values.	Claim 11

29. The apparatus of claim 21. wherein the priority value comprises a priority associated with a flow requesting the at least a portion of the plurality of vehicle parameter values.	Claim 11
30. The apparatus of claim 21, wherein the priority value comprises a priority associated with a flow associated with an end point requesting the at least a portion of the plurality of vehicle parameter values.	Claim 11

Claim Rejections - 35 USC § 102

The following is a quotation of the appropriate paragraphs of 35 U.S.C. 102 that form the basis for the rejections under this section made in this Office action:

> A person shall be entitled to a patent unless –
>
> (a)(2) the claimed invention was described in a patent issued under section 151, or in an application for patent published or deemed published under section 122(b), in which the patent or application, as the case may be, names another inventor and was effectively filed before the effective filing date of the claimed invention.

20. ***Claims 14-15 are rejected*** under 35 U.S.C. 102(a)(2) as being anticipated by Beiderbeck et al (PCT International Application No. PCT/EP2018/060970, published Nov. 22, 2018 wherein the Pub. No.: US 2020/0164882 A1 is used as an English translation for the International Application) hereinafter Beiderbeck.

As per claim 14, Beiderbeck discloses an apparatus, comprising:

- a policy acquisition circuit structured to interpret a vehicle policy data value comprising at least one requested vehicle property (Beiderbeck, abstract, paragraph 0023,

wherein there is provision for the overtaking information to be produced on the basis of training data, with at least one of the following properties that characterize the driver. The training data thus have at least one of the properties. As such, the property can be available for example as a speed of travel relative to the mandatory speed, as a safety distance when pulling back in after an effected overtaking maneuver or as a distance from the target vehicle when pulling out before an effected overtaking maneuver. Thus, the overtaking information including at least one of the property of the speed of travel, the safety distance and the distance from the target vehicle can be the property requested value as claimed); and

- a parameter acquisition circuit structured to interpret a plurality of vehicle parameter values, responsive to the at least one requested vehicle property (Beiderbeck, abstract, paragraph 0028-0029, 0031, there is preferably provision for a current operating parameter of the motor vehicle to be captured and for the operating parameter and the overtaking information to be used to recognize an intention of the driver to overtake, and for the control signal to be selected on the basis of the recognized intention to overtake. The operating parameter can be concordant with the properties of the training data, for example. As such, for example the operating parameter allows a determined distance behavior or a determined acceleration behavior to be captured that has a level of similarity with the overtaking information. To this end, the operating parameter can be compared with the overtaking information and then for example categorized as similar or dissimilar on the basis of the comparison. If the operating parameter is assessed as similar to the overtaking information, this then allows the inference that the driver intends to overtake, for example. On the basis of the recognized intention to overtake, for example the control signal allows advice to be output to the driver indicating that the overtaking maneuver would be possible with less risk at a specific distance or else that the present overtaking opportunity should be taken because there is no

overtaking opportunity at all in the next journey section},

from a plurality of providing end points, each of the plurality of providing end points on at least one network zone of a vehicle {Beiderbeck, paragraph 0017, 0019, wherein the surrounding area of the motor vehicle is captured and the sensor data are provided. The surrounding area can be captured for example using a wide variety of ambient sensors of the motor vehicle, for example a camera, a radar sensor, a lidar sensor, a laser scanner, an ultrasonic sensor or a combination of these sensors, wherein the plurality of sensors within the car can be the providing endpoints on at least one network zone of a vehicle as claimed) ***;***

- ***a parameter storage circuit structured to selectively store at least a portion of the plurality of vehicle parameter values, wherein at least a first portion of the stored at least a portion of the plurality of vehicle parameter values are stored on a storage end point distinct from an associated one of the plurality of providing end points for the at least a first portion of the stored vehicle parameter values*** (Beiderbeck, paragraph 0087, wherein the overtaking information 15 may be stored for example in a portable vehicle key or, as already mentioned, in the vehicle-external device 51, so that the driver 13 can take the overtaking information with him/her when changing vehicle, for example when changing to a rental vehicle).

As pre claim 15, claim 14 is incorporated and Beiderbeck discloses **wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter values on a single storage end point** (Beiderbeck, paragraph 0087, wherein the overtaking information 15 may be stored for example in a portable vehicle key or, as already mentioned, in the vehicle-external device 51, so that the driver 13 can take the overtaking information with him/her when changing vehicle, for example when changing to a rental vehicle);

Claim Rejections - 35 USC § 103

The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

> A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

21. ***Claim***(s) **16** is/are rejected under 35 U.S.C. 103 as being unpatentable over Beiderbeck et al (PCT International Application No. PCT/EP2018/060970, published Nov. 22, 2018 wherein the Pub. No.: US 2020/0164882 A1 is used as an English translation for the International Application) in view of Xiang et al (Pub. No.: US 2020/0208998 A1).

As per claim 16, claim 14 is incorporated Beiderbeck does not clearly disclose a storage management circuit structured to determine a parameter transmission schedule for stored vehicle parameter values, and wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter values in response to the parameter transmission schedule. However, Xiang discloses ***a storage management circuit structured to determine a parameter transmission schedule for stored vehicle parameter values, and wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter values in response to the parameter transmission schedule*** {Xiang, paragraph 0176, wherein a first telemetry transmission schedule may be specified for certain types of telemetry data (e.g., continuous for vehicle position information or for diversions from the original route), a second telemetry transmission schedule may be specified for certain other types of telemetry data (e.g., object detection), and a third telemetry transmission schedule may be specified for still other types of

telemetry data (e.g., pavement text, pavement markings, street sign text, etc.). Optionally, the telemetry transmission schedule may specify that the transmission of telemetry data is to be halted if the vehicle is parked and/or stationary for more than a threshold period of time).

Therefore, it would have been obvious to one ordinary skill in the art before the effective filing date of the invention to modify Beiderbeck in view of Xiang such that a transmission schedule is used as claimed because this would have provided a way to reduce the possibility that desirable telemetry data will be overwritten in memory prior to the desirable telemetry data being broadcast (see Xiang, paragraph 0176).

22. ***Claim***(s) **17-18** is/are rejected under 35 U.S.C. 103 as being unpatentable over Beiderbeck et al (PCT International Application No. PCT/EP2018/060970, published Nov. 22, 2018 wherein the Pub. No.: US 2020/0164882 A1 is used as an English translation for the International Application) in view of Petousis et al (Pub. No.: US 2018/0261020 A1).

As per claim 17, claim 14 is incorporated Beiderbeck does not clearly disclose a storage management circuit structured to determine a parameter expiration schedule for stored vehicle parameter values, and wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter values in response to the parameter expiration schedule. However, Petousis discloses ***a storage management circuit structured to determine a parameter expiration schedule for stored vehicle parameter values, and wherein the parameter storage circuit is further structured to selectively store the at least a portion of the plurality of vehicle parameter values in response to the parameter expiration schedule*** (Petousis, paragraph 0035, wherein estimating the compressibility of the vehicle sensor data functions to estimate the minimum size of the vehicle sensor data (e.g., after

compression), which can be used for scheduling the vehicle sensor data to be transformed (e.g., compressed) and transmitted).

Therefore, it would have been obvious to one ordinary skill in the art before the effective filing date of the invention to modify Beiderbeck in view of Petousis such that a transmission schedule is used as claimed because this would have provided a way to reduce the possibility that desirable data will be overwritten in memory prior to the desirable data being transmitted (see Petousis, paragraph 0003).

As pre claim 18, claim 17 is incorporated and Xiang discloses wherein the parameter storage circuit is further structured to perform at least one operation responsive to the parameter expiration schedule selected from the operations consisting of: deleting at least a portion of the stored vehicle parameter values; summarizing at least a portion of the stored vehicle parameter values; compressing at least a portion of the stored vehicle parameter values; or adjusting a reserved memory amount associated with at least a portion of the stored vehicle parameter values (Petousis, paragraph 0035, wherein estimating the compressibility of the vehicle sensor data functions to estimate the minimum size of the vehicle sensor data (e.g., after compression), which can be used for scheduling the vehicle sensor data to be transformed (e.g., compressed) and transmitted);

Allowable Subject Matter

Claims 2-3 are objected to as being dependent upon a rejected base claim, but would be allowable if rewritten in independent form including all of the limitations of the base claim and any intervening claims.

Conclusion

Any inquiry concerning this communication or earlier communications from the examiner should be directed to HAMZA N ALGIBHAH whose telephone number is (571)270-7212. The examiner can normally be reached 7:30 am - 3:30 pm.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Wing Chan can be reached on (571) 272-7493. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

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/HAMZA N ALGIBHAH/
Primary Examiner, Art Unit 2441